

HOUSE No. 2519

The Commonwealth of Massachusetts

PRESENTED BY:

David Allen Robertson

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting efficient environmental public health protections against cancer.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Allen Robertson</i>	<i>19th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 2519

By Representative Robertson of Tewksbury, a petition (accompanied by bill, House, No. 2519) of David Allen Robertson for legislation to establish the environmental public health trust fund for cancer surveillance and environmental data collection within the Department of Public Health. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2257 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting efficient environmental public health protections against cancer.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section XX: There shall be established and set up on the books of the commonwealth a
2 fund to be known as the Environmental Public Health Trust Fund (EPHTF), which shall be
3 administered by the Commissioner of the Department of Public Health. Expenditures from the
4 fund shall not be subject to appropriation unless otherwise required by law. The fund shall
5 provide funding for, but not supplant, funds previously designated to support public health
6 investigations under Section 4 of Chapter 21e of the General Laws. The purpose of the fund
7 shall be to provide initial and ongoing funding for cancer surveillance and environmental data
8 collection and to ensure that studies initiated by the department to examine the human health
9 impact of past and present environmental conditions are completed in as timely a manner as
10 scientifically feasible. Funds may be provided from the EPHTF to support environmental public

health activities including but not limited to research, environmental and biologic sample(s) design and collection modeling, surveys, public engagement and associated administrative costs. The commissioner shall administer the fund using methods, policies, procedures, standards, and criteria for the proper and efficient operation of the fund and studies supported by it in a manner designed to achieve equity, fairness, and efficiency. The secretary of administration and finance, in consultation with the secretary of health and human services, shall determine annually the expenses of administering the fund, which shall be charged to the fund. Any health surveillance and research efforts supported by the EPHTF shall be published electronically on the General Court website as well as the department's website and filed with the clerks of the House and Senate. The commissioner shall report annually itemized expenditures from the fund to the clerks of the House and Senate and the Senate and House committees on ways and means.

(b) The fund shall consist of: (i) legislative appropriations; (ii) gifts or grants from private or public sources, (iii) any legislatively authorized transfers approved by the secretary of administration and finance; and (iv) state and/or federal funds received as a result of cost recovery efforts associated with health investigations related to state and nationally recognized hazardous waste for the specific purpose of the fund. Any amounts contained in the fund shall not revert to the general fund. All interest earned on the amounts in the fund shall be deposited or retained in the fund. The Comptroller shall pay, without further appropriation, any and all amounts certified by the Commissioner for payment as provided above.